FREE GUIDE · ASCENT LEGAL IP PRACTICE

The 7 Mistakes That Kill New Trademarks

What everyfounder, creator,andbrandneeds to know before — and after — they file.

Prepared by Ascent Legal · Business-First Entertainment & IP Counsel
3780 Kilroy Airport Way, Suite 200, Long Beach, CA 90806
ascentlegal.io · (714) 203-3535 · info@ascentlegal.io

WHAT'S INSIDE

Table of Contents

01 **Skipping the Trademark Search**
The single most preventable — and most common — mistake.

02 **Choosing the Wrong Classes**
File in the right categories, or your registration may be worthless.

03 **Waiting Too Long to File**
Why your filing date matters more than you think.

04 **Using Merely Descriptive Terms**
How your brand name itself can get your application rejected.

05 **Ignoring International Rights**
A U.S. registration only protects you in the U.S.

06 **Inconsistent Trademark Use**
What you do after registration determines whether you keep it.

07 **Failing to Monitor and Enforce**
A trademark you don't defend is a trademark you can lose.

This guide is provided for educational purposes only and does not constitute legal advice. No attorney-client relationship is created by reading this material. For advice specific to your situation, please consult a qualified trademark attorney.

BEFORE YOU READ

Your Trademark Risk Score

Answer eachquestion honestly. Circleornote yourscore for each, then addthem up at the bottom. Your total will tell you exactly how urgent your trademark situation is — and which chapters matter most.

1 Have you done a formal trademark clearance search (not just Google)?

RelatestoMistake#1

- Yes,afull professional search **+0 pts**
- Abasic USPTO search only **+2 pts**
- JustGoogled it **+3 pts**
- Nosearch at all **+4 pts**

2 Do you know which USPTO class(es) your brand should be filed under?

RelatestoMistake#2

- Yes,confirmed with an attorney **+0 pts**
- Ihavea general idea **+2 pts**
- Notsure **+3 pts**
- No idea **+4 pts**

3 How long have you been using your brand name without a trademark filing?

RelatestoMistake#3

- Filedalready or filing soon **+0 pts**
- Lessthan 6 months **+1 pts**
- 6months to 2 years **+3 pts**
- Morethan 2 years **+4 pts**

4 How distinctive is your brand name?

RelatestoMistake#4

- Made-up or arbitrary word (e.g. Kodak) **+0 pts**
- Suggestive of a benefit **+1 pts**
- Describes what you do or sell **+3 pts**
- Acommon word or phrase **+4 pts**

5 Do you sell products or services outside the United States?

RelatestoMistake#5

- No, U.S. only
  +0 pts
- Planning to within 12 months
  +2 pts
- Yes, but no international filings
  +4 pts
- Yes, with international filings
  +0 pts

6 How consistently do you use the ™ or ® symbol and your brand name?

Relates to Mistake #6

- Always, with clear usage guidelines
  +0 pts
- Sometimes, when I remember
  +2 pts
- Rarely or never
  +3 pts
- I didn't know I had to
  +4 pts

7 Do you actively monitor for others using your brand name?

Relates to Mistake #7

- Yes, with a monitoring service
  +0 pts
- Occasional manual checks
  +2 pts
- Only when someone tells me
  +3 pts
- No monitoring at all
  +4 pts

YOUR SCORE

0 – 4	**PROTECTED**	Your trademark position looks solid. Read on to confirm there are no gaps.
5 – 11	**MODERATE RISK**	You have meaningful exposure in at least a few areas. Pay close attention to the relevant chapters.
12 – 19	**HIGH RISK**	Your brand has significant trademark vulnerabilities that need to be addressed soon.
20 – 28	**CRITICAL**	Your trademark is largely unprotected. We strongly recommend booking a discovery call with Ascent Legal this week.

NEXT STEP

Scored 12 or higher? Book a free discovery call at ascentlegal.io — we'll review your specific situation and tell you exactly what needs to be done.

01

MISTAKE#1·MOST COMMON

Skipping the Trademark Search

Before you file — before you even finalize your brand name — you need to know whether someone else already owns it. Most people skip this step entirely, or worse, they run a quick Google search and call it done. Neither is enough.

Why It Matters

The USPTO won't automatically block you from filing a name that conflicts with an existing trademark — but the owner of that mark can oppose your application, force you to rebrand, or sue you for infringement. By the time that happens, you may have already invested in packaging, a website, merchandise, and a following built around a name you can't legally keep.

What a Real Search Looks Like

A proper trademark clearance search has three layers: first, a search of the USPTO's TESS database for identical and similar marks; second, a common law search covering unregistered marks in use (business directories, domain registrations, social media handles); and third, a similarity analysis — because you don't have to copy a mark exactly to infringe it. Phonetically similar, visually similar, or conceptually similar names can all create conflicts.

The DIY Trap

Many founders search their exact name, find nothing, and assume they're clear. But trademark law looks at likelihood of confusion across similar goods and services — not just identical names. A search that doesn't account for phonetic similarity, design elements, or related industries is incomplete.

KEY INSIGHT

"We Googled it and nothing came up."

A Google search is not a trademark search. Unregistered marks, state registrations, and similar-sounding names won't appear — and they can all still block your application or create legal risk.

ASCENT LEGAL TIP

Ascent Legal conducts comprehensive clearance searches before every trademark filing. We check the USPTO database, common law sources, and related industries — then give you a plain-English risk assessment before you spend a dollar on a filing fee.

02

MISTAKE #2 · COSTLY

Choosing the Wrong Trademark Classes

Trademarks are registered in specific classes — categories that define the goods or services your mark covers. File in the wrong class, or too few classes, and your registration may offer zero protection in your actual market.

The Class System Explained

The USPTO uses the Nice Classification system, which divides goods and services into 45 classes. Class 25 covers clothing. Class 41 covers education and entertainment. Class 35 covers business services and advertising. Your trademark only protects you within the classes you file — which means a competitor could register the same name in a different class and operate legally right next to you.

The Over-Filing Problem

Some applicants try to cover every class imaginable, which creates its own issues. You must have a bona fide intent to use the mark in every class you file. Filing in classes you don't actually use can render your registration vulnerable to cancellation — and it inflates your filing fees unnecessarily.

The Under-Filing Problem

The more common mistake is under-filing. A creator who sells merchandise files only in Class 25 (clothing) but forgets Class 41 (entertainment services) — leaving their entire content brand unprotected. A SaaS company files in Class 42 (software) but misses Class 35 (advertising and business services), which covers the core of how they generate revenue.

KEY INSIGHT

Filing in the wrong class is like getting a lock for the front door and leaving the back door wide open.

Your trademark only protects you where you filed. A competitor operating in an unprotected class can legally use your name — even after you're registered.

ASCENT LEGAL TIP

Before we file anything at Ascent Legal, we map your actual business activities to the correct classes — and flag adjacent classes you may want to cover as your brand grows. Getting this right from the start is far cheaper than filing amendments later.

03

MISTAKE#3 ·TIME-SENSITIVE

Waiting Too Long to File

The United States trademark system operates on a first-to-file basis. That means the date you file your application matters — sometimes more than how long you've actually been using the mark.

First-to-File vs. First-to-Use

Unlike some countries that follow a strict first-to-file rule, the U.S. does recognize prior use rights — but enforcing them is expensive, time-consuming, and uncertain. If someone files before you, even if you've been using the mark longer, you'll have to prove priority through evidence of actual use, which can turn into contested litigation. Filing early eliminates that risk entirely.

The Intent-to-Use Application

You don't have to be using your mark yet to file. The USPTO allows Intent-to-Use (ITU) applications, which let you establish your priority date before you launch. This is one of the most underused tools available to founders and creators — you can lock in your filing date while your product, content, or brand is still in development.

What Delay Costs You

Every day you wait is a day a competitor can file first. Once someone files before you, your options shrink dramatically: you can oppose their application (costly, uncertain), negotiate a coexistence agreement, or rebrand. None of those outcomes is as clean — or as cheap — as simply filing early.

KEY INSIGHT

Every day you delay is an open window for someone else to file first.

The filing date is your stake in the ground. Once someone else plants theirs first, your options become far more limited — and far more expensive.

ASCENT LEGAL TIP

If your brand name is part of your business model, file as early as possible — even before launch. An Intent-to-Use application locks in your priority date now and gives you up to 36 months to put the mark into commercial use.

04

MISTAKE#4·HIDDEN TRAP

UsingMerely Descriptive Terms

Not all brand names are created equal — at least not in the eyes of the USPTO. One of the most common reasons trademark applications are rejected is that the mark is "merely descriptive" of the goods or services it represents.

The Spectrum of Trademark Strength

Trademark law ranks marks on a spectrum from weakest to strongest: Generic (never protectable) → Descriptive (usually not protectable without proof of acquired distinctiveness) → Suggestive (protectable) → Arbitrary (strong) → Fanciful (strongest). Descriptive marks are rejected because they don't function as identifiers of source — they just describe what the product is or does.

Common Examples

"Cold and Creamy" for ice cream is descriptive. "Quick Loans" for a lending service is descriptive. "Legal Docs" for a document service is descriptive. These names tell consumers something about the product, but they don't identify who is providing it — which is the core function of a trademark.

The Secondary Meaning Exception

Descriptive marks can become protectable if they acquire secondary meaning — meaning consumers have come to associate the term specifically with your brand rather than the general product category. This requires extensive evidence of long, exclusive use and significant consumer recognition. It's a high bar that takes years to clear, and it's almost always better to choose a stronger mark from the start.

KEY INSIGHT

"But everyone in our industry knows what we mean by it."

Industry familiarity is not legal distinctiveness. A mark that describes your product — even cleverly — is vulnerable to rejection and third-party challenges.

ASCENT LEGAL TIP

Before settling on a brand name, run it through the strength spectrum. Suggestive names (ones that hint at a quality or benefit without directly describing it) give you trademark protection without sacrificing memorability. We help clients find that balance.

05

MISTAKE#5·GLOBAL RISK

Ignoring International Rights

A U.S. trademark registration gives you rights in the United States — and nowhere else. If you sell internationally, license your brand, or plan to expand, failing to protect your mark abroad can create serious problems that are difficult and expensive to unwind.

Trademark Rights Are Territorial

Each country has its own trademark system. Your USPTO registration does not automatically protect you in Canada, the UK, the EU, Australia, or anywhere else. In many countries, a local competitor can legally register your mark — and then use it, license it, or even demand payment from you to stop using your own name in their market.

The Madrid Protocol

The most efficient way to file internationally is through the Madrid Protocol, an international treaty that allows you to file a single application covering up to 130+ member countries. It uses your U.S. application as a base, which means you need a strong domestic filing first. Each country still examines the application under its own rules, but the process is streamlined and significantly cheaper than filing separately in each jurisdiction.

When to Think About This

International filing makes sense if you're actively selling in other markets, if your brand has significant online reach (which crosses borders by nature), or if you're building toward a licensing or acquisition scenario. The earlier you file, the lower the cost — waiting until someone squats your name in a key market is always more expensive than proactive protection.

KEY INSIGHT

Trademark squatters in key markets actively monitor USPTO filings to register your mark abroad before you do.

This is especially common in high-growth markets like China, where a first-to-file system makes proactive registration critical for any brand with global ambitions.

ASCENT LEGAL TIP

Not every brand needs global trademark protection on day one — but every brand should have a plan. We help clients prioritize which markets matter most and sequence filings strategically to manage cost without leaving meaningful gaps.

06

MISTAKE #6 · POST-FILING

Inconsistent Trademark Use

Getting your trademark registered is not the finish line. How you use your mark after registration matters just as much as the filing itself — and inconsistent use can weaken or even invalidate your rights over time.

Use It or Lose It

A registered trademark can be cancelled if it's not put to genuine commercial use. The USPTO requires you to file a Declaration of Use between the 5th and 6th year after registration, and again at renewal. If you can't demonstrate continued use, your registration can be cancelled — giving competitors an opening to register the same or similar mark.

How to Use Your Mark Correctly

Always use your trademark as an adjective, not a noun or verb. 'ASCENT LEGAL brand services' not 'Ascent Legal it.' Use the correct symbol: ™ before registration, ® after. Use your mark consistently — the same spelling, capitalization, and design across all touchpoints. Don't let the mark become generic by using it interchangeably with the product category it represents.

Licensing and Assignments

If you license your trademark to others, you must maintain quality control over the goods or services produced under your mark. A 'naked license' — one that transfers rights without adequate quality oversight — can result in the mark being deemed abandoned. Similarly, if your brand is acquired or restructured, make sure trademark assignments are properly recorded with the USPTO.

KEY INSIGHT

A trademark you stop using — or use incorrectly — can be taken from you.

Abandonment, improper licensing, and generic use are all grounds for third parties to challenge your registration — even years after it was granted.

ASCENT LEGAL TIP

We advise clients on proper trademark use guidelines as part of every registration matter. A short internal style guide for how to use your mark correctly can prevent expensive problems down the road.

07

MISTAKE#7·ONGOING DUTY

Failing to Monitor and Enforce

A trademark registration is not a self-enforcing document. Once you're registered, you take on an affirmative duty to monitor the marketplace for infringing uses — and to act when you find them. Failure to do so can cost you your rights.

Why Monitoring Matters

Trademark rights can be lost through acquiescence — if you become aware of an infringing use and fail to act, courts may find that you've implicitly accepted it. Beyond the legal consequences, unchallenged infringement weakens your brand's distinctiveness in the market, making your mark harder to enforce against future infringers.

What to Watch For

Monitor USPTO filings for applications that are confusingly similar to your mark. Watch for new domain registrations using your name. Set up Google Alerts and social media monitoring for your brand name. Pay attention to marketplace platforms (Amazon, Etsy, etc.) where counterfeit or infringing products frequently appear. The goal is to catch issues early — before they grow into entrenched infringement.

Enforcement Options

You don't always need to go to court. In many cases, a well-drafted cease and desist letter resolves the matter quickly and cost-effectively. For USPTO applications that conflict with your mark, you can file an opposition during the 30-day opposition window — a much less expensive process than litigation. Knowing your enforcement options — and acting in a timely way — is what makes a trademark registration genuinely valuable.

KEY INSIGHT

A trademark you don't defend is a trademark you can lose.

Enforcement doesn't always mean litigation — but it does mean acting. A strategic cease and desist or opposition proceeding is often all that's needed to protect your rights.

ASCENT LEGAL TIP

Ascent Legal offers trademark monitoring as part of our ongoing brand protection work. We watch for conflicting filings and marketplace infringement, and advise on the most efficient response strategy when issues arise.

HOW ASCENT LEGAL HELPS PROTECT YOUR BRAND

Plain-English IP Counsel for Creators, Brands & Growing Companies

Transactional only. No litigation. Fast turnarounds. Agency-friendly workflows.

01

Trademark Clearance Search

Comprehensive USPTOand common law search with a plain-English risk analysis. Know before you file whether your name is clear — and where the risks are.

Most clients start here

02

USPTO Trademark Filing

Application preparation, classstrategy, and prosecution support through to registration. We handle the filing so nothing falls through the cracks.

Fixed-fee available

03

Trademark Monitoring

Ongoingmonitoring forconflicting USPTO applications and marketplace infringement. We flag issues early so you can act before they become costly.

Ongoing protection

04

Brand Licensing & Deal Support

Contractsand licensingstrategy forcreators,agencies, and brands. Sponsorships, UGC agreements, usage rights, whitelisting, and term extensions.

For creators & agencies

Book a Free 20-Minute Trademark Strategy Call

Tell us about your brand. We'll review your situation and tell you exactly what needs to be done — no obligation, no jargon.